NASSAU RE

Nassau Life Insurance Company of Texas
Nassau Life Insurance Company of Kansas

*Effective Date: October 1, 2019*

# Notice of Privacy Practices

Nassau Life Insurance Company of Texas, and its affiliates and subsidiaries, including Nassau Life Insurance Company of Texas on behalf of American Progressive Life & Health Insurance Company of New York; Nassau Life Insurance Company of Texas on behalf of Pennsylvania Life Insurance Company; and Nassau Life Insurance Company of Kansas ("**Nassau Re,**" "**we**," "**us**," or "**our**") protect the privacy of your personal information in accordance with applicable laws and regulations, including the Gramm-Leach-Bliley Act, as amended ("**GLBA**"), and the Health Insurance Portability and Accountability Act of 1996, as amended ("**HIPAA**"). This notice covers life insurance, health insurance, long-term care insurance, annuities, and disability insurance plans offered by Nassau Re as well as third-party insurance products that are administered by Nassau Re.

## Part I - Your Personal Information

### 1. Why Do We Collect Your Personal Information?

Financial companies, including Nassau Re, choose how they share your nonpublic personal and financial information ("**personal information**"). Federal law requires us to tell you how we collect, share, and protect your personal information.

### 2. What Information Does Nassau Re Collect?

The types of personal information we collect and share depend on the product or service you have with us. This information can include:

- Social Security number and medical information;
- Account transactions and account balances; and
- Checking account information and employment information.

### 3. How Does Nassau Re Collect Your Personal Information?

We collect personal information about you from the following sources:

- Information we receive from you on applications and other forms;
- Information about your transactions with us, our affiliates or others; and
- Information we receive from a consumer reporting agency.

### 4. How Does Nassau Re Share Your Personal Information?

We do not disclose any nonpublic personal information about our customers or former customers to anyone, except as permitted or required by law.

### 5. How Does Nassau Re Protect Your Information?

We restrict access to nonpublic personal information about you to employees who need to know that information to provide products or services to you. Our employees may access Your Protected Information only when there is an appropriate reason to do so, such as to administer or offer our products or services. We maintain physical, electronic, and procedural safeguards that comply with federal regulations to guard your nonpublic personal information.

## Part II - Your Health Information

### 1. Your Health Information

We protect the privacy of your health information in accordance with applicable laws and regulations, including HIPAA. Health information includes any information that relates to your physical or mental health or condition and individually identifiable information, such as your name, address, telephone number or social security number ("**health information**").

The law requires us to protect the privacy of your health information. This means that we will not use or let other

people see your health information without your permission except in the ways we tell you in this notice. We will safeguard your health information and keep it private.

This notice describes how we may use and disclose information about you and your eligible dependents, as applicable, in administering your benefits, and it explains your legal rights regarding the information.

## 2. Your Rights

**When it comes to your health information, you have certain rights.** This section explains your rights and some of our responsibilities to help you.

- **Get a copy of health and claims records.** You can ask to see or get a copy of your health and claims records and other health information we have about you. Ask us how to do this. We will provide a copy or a summary of your health and claims records, usually within 30 days of your request. We may charge a reasonable, cost-based fee.
- **Ask us to correct health and claims records.** You can ask us to correct your health and claims records if you think they are incorrect or incomplete. Ask us how to do this. We may say "no" to your request, but we'll tell you why in writing within 60 days.
- **Request confidential communications.** You can ask us to contact you in a specific way (for example, home or office phone) or to send mail to a different address. We will consider your request, but the law does not require us to agree to it. If we do agree, we will put the agreement in writing and follow it, except in the case of an emergency. We cannot agree to limit the uses or sharing of information that are required by law.
- **Alternative communications.** You can ask us to contact you at a different place or in some other way. We will agree to your request as long as it is reasonable.
- **Get a list of those with whom we've shared information.** You can ask for a list (accounting) of the times we've shared your health information for six years prior to the date you ask, who we shared it with, and why. We will include all the disclosures except for those about treatment, payment, and health care operations, and certain other disclosures (such as any you asked us to make). We'll provide one accounting a year for free, but will charge a reasonable, cost-based fee if you ask for another one within 12 months.
- **Get a copy of this privacy notice.** You can ask for a paper copy of this notice at any time, even if you have agreed to receive the notice electronically. We will provide you with a paper copy promptly.
- **Choose someone to act for you.** If you have given someone medical power of attorney or if someone is your legal guardian, that person can exercise your rights and make choices about your health information. We will make sure the person has this authority and can act for you before we take any action.
- **File a complaint if you feel your rights are violated.** You can complain if you feel we have violated your rights by contacting us using the information provided below.
  - You can file a complaint with the U.S. Department of Health and Human Services Office for Civil Rights by sending a letter to 200 Independence Avenue, S.W., Washington, D.C. 20201, calling 1-877-696-6775, or visiting www.hhs.gov/ocr/privacy/hipaa/complaints/.
  - You can contact the company directly at CLICPrivacy@nsre.com.
  - We will not retaliate against you for filing a complaint.

## 3. Your Choices

**For certain health information, you can tell us your choices about what we share.** If you have a clear preference for how we share your information in the situations described below, talk to us. Tell us what you want us to do, and we will follow your instructions. In these cases, you have both the right and choice to tell us to:

- Share information with your family, close friends, or others involved in payment for your care;
- Share information in a disaster relief situation.

*If you are not able to tell us your preference, for example if you are unconscious, we may go ahead and share your information if we believe it is in your best interest. We may also share your information when needed to lessen a serious and imminent threat to health or safety.*

## 4. How Does Nassau Re Use and Disclose Your Health Information?

**Treatment and Health Care Options.** We may use or disclose your health information to your treating providers,

to handle payment for that care, or for our own health care operations. We are not required to obtain your permission or authorization to use or disclose your health information for these purposes.

- **Pay for your health services.** We can use and disclose your health information as we pay for your health services. For example, your health information that we receive may be shared for payment purposes or for communications with healthcare providers regarding payment of claims.
- **Help manage the health care treatment you receive.** We can use your health information and share it with professionals who are treating you. Treatment may include evaluating your health and medical conditions.
- **Run our organization.** We can use and disclose your information to run our organization and contact you when necessary. We can also use or disclose your health information for health care operations, which includes:
  - Evaluating services and developing procedures;
  - Case management and care coordination;
  - Reviewing the competence, qualifications, and performance of professionals and others;
  - Conducting training programs and resolving internal grievances;
  - Engaging in business planning and management or general administration; and
  - Managing software and databases.

We are not allowed to use genetic information to decide whether we will give you coverage and the price of that coverage; however, this restriction does not apply to long term care plans.

**Administer your plan.** We may disclose your health information to your health plan sponsor for plan administration.

**Comply with the Law.** We will share information about you if state or federal laws require it, including with the Department of Health and Human Services if it wants to see that we're complying with federal privacy law.

**Address workers' compensation, law enforcement, health oversight and other government requests.** We can use or share health information about you:

- For workers' compensation claims;
- For law enforcement purposes or with a law enforcement official;
- With health oversight agencies for activities authorized by law;
- For special government functions such as military, national security, and presidential protective services;
- For disaster relief efforts.

**Respond to lawsuits and legal actions.** We can share health information about you in response to a court or administrative order, or in response to a subpoena or other lawful process that requires us to disclose it.

**Communications about our products.** We may use your health information to give to you information about other health-related benefits and services that we provide and that may be of interest to you.

**Disclosures to a correctional institution.** If you are in the custody of a correctional institution, we may disclose your health information to the institution in order to provide health care to you.

**For government benefit programs.** We may use or disclose your health information as needed to government agencies administering government programs that provide public benefits.

**Help with public health and safety issues.** We can share health information about you for certain situations such as:

- Preventing disease;
- Helping with product recalls;
- Reporting adverse reactions to medications;
- Reporting suspected abuse, neglect, or domestic violence;
- Preventing or reducing a serious threat to anyone's health or safety.

**Do research.** We can use or share your information for health research.

**Respond to organ and tissue donation requests and work with a medical examiner or funeral director.** We can share health information about you with organ procurement organizations. We can share health information with a coroner, medical examiner, or funeral director when an individual dies.

For more information see:

www.hhs.gov/ocr/privacy/hipaa/understanding/consumers/index.html.

### 5. Authorizations / Revocation of Authorization

Uses or disclosures of your health information for purposes other than those described in this notice will be made only after you provide us with a written authorization. Your written authorization is required for the sale of your health information and for the use or disclosure of your health information for marketing communications, except for face-to-face communications made by us to you or a promotional gift of nominal value provided by us to you. We may use your health information to contact you regarding our fundraising activities; however, you will have the right to opt out of receiving those fundraising communications.

If you give us your permission to use or disclose your health information, you may take it back (or revoke) at any time. If you revoke your permission, send a written revocation, signed by you, to CLICPrivacy@nsre.com. Please provide the date on your request and state that you revoke your permission.

### 6. Our Responsibilities

We are required by law to maintain the privacy and security of your protected health information.

- We will let you know promptly if a breach occurs that may have compromised the privacy or security of your information.
- We must follow the duties and privacy practices described in this notice and give you a copy of it.
- We will not disclose any information about you related to HIV/AIDS or alcohol or substance abuse without your specific written permission, unless the law allows us to disclose the information.

For more information see:

www.hhs.gov/ocr/privacy/hipaa/understanding/consumers/noticepp.html.

### 7. Changes to the Terms of This Notice

We can change the terms of this notice, and the changes will apply to all information we have about you. The new notice will be available upon request, on our website, www.nsre.com/constitutionlife, and we will mail a copy to you.

### 8. Other Instructions for Notice

For more information about this notice, contact us at: CLICPrivacy@nsre.com.

## Part III - Questions and Contact Information

For additional information regarding any of the information above, please write to us. You may contact our Privacy Office at:

Nassau Life Insurance Company of Texas
Nassau Life Insurance Company of Kansas
1064 Greenwood Boulevard Suite 260
Lake Mary, FL 32746

E-mail: CLICPrivacy@nsre.com

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